

Stereo.HCJDA 38.
Judgment Sheet
IN THE LAHORE HIGH COURT, LAHORE.

JUDICIAL DEPARTMENT

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Civil Revision No.35921 of 2025.

Sh. Imam Bakhsh, etc.

Versus

Mst. Gulzar Begum.

J U D G M E N T.

Dates of hearing: **21.05.2026 & 10.06.2026.**

Petitioners by: Mr. Ali Masood Hayat, Advocate.

Respondent NO.2 by: Mr. Hasham Ahmad Khan,
Advocate.

AHMAD NADEEM ARSHAD, J. Through this Civil Revision filed u/s 115 of *Code of Civil Procedure, 1908*, the petitioners have called into question the validity and legality of order dated 27.05.2025 whereby their appeal was returned by the Appellate Court for its presentation before the Court of competent jurisdiction.

2. Tersely, the facts forming background of the proceedings in hand are that respondents No.1 & 2 filed an application for issuance of succession certificate with respect to the assets mentioned therein being estate of deceased Sheikh Taj Ali. Learned Trial Court after adopting the codal procedure accepted the application and entitled the respondents No.1 & 2 to receive the amount mentioned in column No.6 of the petition by determining share of respondent No.1

as 1/8 and share of respondent No.2 as 7/8. Feeling aggrieved, the petitioners, who are brothers of deceased Sheikh Taj Ali, filed an appeal which was returned by the learned Appellate Court vide order dated 27.05.2025 for its presentation at proper forum by observing as under:-

"4. In view of above clear dictum laid down by the superior courts, as the valuation made in the application for issuance of succession certificate exceeds pecuniary jurisdiction of this court as Provided in Section-18 of West Pakistan Civil Court Ordinance, 1962, therefore objection is allowed and instant appeal is returned to the appellant to present the same at proper forum of competent jurisdiction. Ahlmad is directed to return original plaint alongwith wakalat nama to the appellant by retaining the copies of the same after due entries in the relevant register..."

3. Being dissatisfied, the petitioners have filed this Civil Revision.

4. Arguments in this case were completed on 21.05.2026 and the case was fixed for today i.e. 10.06.2026 on the request of petitioners' counsel for submission of case laws, however, today learned counsel for the parties have sent a written request for adjournment. Since, arguments have already been completed, therefore, this case is being decided after going through the record.

5. The sole question requiring determination in the instant revision petition is whether pecuniary jurisdiction applies to an appeal arising out of proceedings for grant of a succession certificate under the Succession Act, 1925 and whether the learned Appellate Court was justified in returning the appeal on the ground that the value of the estate exceeded its pecuniary limits.

6. In order to appreciate the controversy involved in the matter, it would be advantageous to examine the relevant provisions of the Succession Act, 1925. Section 373 of the Act prescribes the procedure to be adopted by the Court while dealing with an application for issuance of a succession certificate, which reads as under:-

"373. Procedure on application. — (1) If the District Judge is satisfied that there is ground for entertaining the application, he shall fix a day for the hearing thereof and can notice of the application and of the day fixed for the hearing —

(a) to be served on any person to whom, in the opinion of the Judge, special notice of the application should be given, and

(b) to be posted on some conspicuous part of the court-house and published in such other manner, if any, as the Judge, subject to any rules made by the High Court in this behalf, thinks fit,

and upon the day fixed, or as soon thereafter as may be practicable, shall proceed to decide in a summary manner the right to the certificate.

(2) When the Judge decides the right thereto to belong to the applicant, the Judge shall make an order for the grant of the certificate to him.

(3) If the Judge cannot decide the right to the certificate without determining questions of law or fact which seem to be too intricate and difficult for determination in a summary proceeding, he may nevertheless grant a certificate to the applicant if he appears to be the person having *prima facie* the best title thereto.

(4) When there are more applicants than one for a certificate, and it appears to the Judge that more than one of such applicants are interested in the estate of the deceased, the Judge may, in deciding to whom the certificate is to be granted, have regard to the extent of interest and the fitness in other respects of the applicants."

7. Section 373 makes it clear that proceedings for issuance of a succession certificate are summary in nature. The Court is not required to finally adjudicate complicated questions of title or inheritance. Even where intricate questions of law or fact arise, the Court may grant the certificate to the person having the *prima facie* best title, leaving the parties to have their substantive rights determined in a regular civil suit if necessary.

8. Appeal in succession matters is creation of statute. Section 384 provides remedy of appeal which reads as under:-

"384. Appeal. — (1) Subject to the other provisions of this Part, an appeal shall lie to the High Court from an order of a District Judge granting, refusing or revoking a certificate under this Part, and the High Court may, if it thinks fit, by its order on the appeal, declare the person to whom the certificate should be granted, and direct the District Judge, on application being made therefor, to grant it accordingly, in supersession of the certificate, if any, already granted.

(2) An appeal under sub-section (1) must be preferred within the time allowed for an appeal under the Code of Civil Procedure, 1908.

(3) Subject to the provisions of sub-section (1) and to the provisions as to reference to and revision by the High Court and as to review of judgment of the Code of Civil Procedure, 1908, as applied by section 141 of that Code, an order of a District Judge under this Part shall be final."

9. Section 388 of the Succession Act, 1925 is highly relevant to the issue, which reads as under:

"388. Investiture of inferior Courts with jurisdiction of District Court for purposes of this Act. — (1) The Provincial Government may, by notification in the official Gazette, invest any Court inferior in grade to a District Judge with power to exercise the functions of a District Judge under this Part.

(2) Any inferior Court so invested shall, within the local limits of its jurisdiction, have concurrent jurisdiction with the District Judge in the exercise of all the powers conferred by this Part upon the District Judge, and the provisions of this Part relating to the District Judge shall apply to such an inferior Court as if it were a District Judge :

Provided that an appeal from any such order of an inferior Court as is mentioned in subsection (1) of section 384 shall lie to the District Judge, and not, to the High Court, and that the District Judge may, if he thinks fit, by his order on the appeal, make any such declaration and direction as that sub-section authorizes the High Court to make by its order on an appeal from an order of a District Judge.

(3) An order of a District Judge on an appeal from an order of an inferior Court under the last foregoing sub-section shall, subject to the provisions as to reference to and revision by the High Court and as to review of judgment of the Code of Civil Procedure, 1908, as applied by section 141 of that Code, be final.

(4) The District Judge may withdraw any proceedings under this Part from an inferior Court, and may either himself dispose of them or transfer them to another such court established within the local limits of the jurisdiction of the District Judge and having authority to dispose of the proceedings.

(5) A notification under sub-section (1) may specify any inferior Court specially or any class of such Courts in any local area.

(6) Any Civil Court which for any of the purposes of any enactment is subordinate to, or subject to the control of, a District Judge shall, for the purposes of this section, be deemed to be a Court inferior in grade to a District Judge."

[Underlined for emphasis]

10. A combined reading of subsections (2) and (3) of Section 388 of the Act, leads to the conclusion that where powers under Part X of the Act have been conferred upon a Civil Judge or any Court inferior to a District Judge, an appeal against the order granting or refusing a succession certificate lies to the District Judge, irrespective of the value of the estate involved.

11. Admittedly, the proceedings before the learned Trial Court were not in the nature of a civil suit but originated from an application for issuance of a succession certificate under Part X of the Succession Act, 1925. The right of appeal in such matters is a creature of statute and has to be exercised strictly in the manner provided by the statute creating such right. The forum of appeal, therefore, cannot be determined by reference to general provisions governing civil suits unless the statute itself so provides.

12. A perusal of Section 384 of the Succession Act, 1925 reveals that an appeal against an order granting, refusing or revoking a succession certificate lies to the appellate forum specified therein. Likewise, Section 388 of the Act empowers the Government to invest courts inferior in grade to a District Judge with powers exercisable by a District Judge under Part X of the Act through a notification and further provides that an appeal against an order of such invested court shall lie to the District Judge. Thus, the

legislature has itself prescribed a complete mechanism regarding the forum of appeal in succession matters.

13. It is a settled principle of law that where a special statute creates a right and also provides a particular forum and procedure for redressal, the provisions of the special statute prevail over general laws. Proceedings for grant of succession certificate are summary in nature and are governed by the special provisions of the Succession Act, 1925. The valuation of the estate mentioned in the application is relevant for purposes contemplated by the Act but does not determine the forum of appeal through application of pecuniary jurisdiction prescribed for ordinary civil suits.

14. In the present case, the learned Appellate Court returned the appeal solely on the premise that the value of the estate exceeded its pecuniary jurisdiction under Section 18 of the West Pakistan Civil Courts Ordinance, 1962. Such approach, in my considered view, is legally misconceived. Once the appeal arose from proceedings under the Succession Act, 1925, the forum of appeal was to be determined in accordance with the provisions of the said Act and not on the basis of pecuniary valuation of the estate. The pecuniary limits applicable to regular civil suits could not be imported into a statutory appeal arising from succession proceedings.

15. In a case titled "Bisesar Sheodayal Soonar V. Jairam Bariyar Soonar" (AIR 1940 Nagpur 162), the Court while elaborating Section 384(1) of the Act, observed as under:-

"Under S. 384(1), Succession Act, appeals from an order of a District Judge granting a certificate under Part 10 of the Act lie to the High Court, but under S. 388(1) the Local Government is given power to invest, by notification, any Court inferior in grade to a

District Judge, with power to exercise the functions of a District Judge under Par 10. Sub-s. (2) of S. 388 then states:

Any inferior Court so invested shall, within the local limits of its jurisdiction have concurrent jurisdiction with the District Judge in the exercise of all the powers conferred by this Part upon the District Judge and the provisions of this Part relating to the District Judge shall apply to such an inferior Court as if it was a District Judge.

Then follows this important proviso which governs the matter now before me:

Provided that an appeal from any such order of an inferior Court as is mentioned in sub-s. (1) of S. 384 shall lie to the District Judge and not to the High Court. "

This Court in a case titled "Sh. Muhammad Mushtaq and others V. Public-At-Large and others" (PLD 1994 Lahore 373)

while dealing with the similar held that regardless of the limits of pecuniary jurisdiction an order passed under the delegated authority under Section 388 of Succession Act, 1925, by a Civil Judge was susceptible to an appeal to the District Judge and not directly to the High Court. Exact wording is as under:

"From the combined operation of sections 388 and 384 of the Succession Act, 1925, it clearly follows that where an order within the meaning of section 384 of the Act was passed by a Court inferior to that of the District Judge within the meaning of subsections (1) and (2) of section 388, then an appeal from an order granting, refusing or revoking a succession certificate passed by such Judge shall lie to the District Judge and not to the High Court. In the territory of Punjab, the Local Government has by a Notification in the official Gazette invested the subordinate Judges of the first and second class with the functions of a District Court. The Notification is referred to in Rattan' Singh and others v. Raj Singh and another AIR 1920 Lahore 497. In Jagram. Das v. Mangal Das AIR 1917 Lahore 276, it was held that an appeal against an order of the Senior Subordinate Judge rejecting an application for succession certificate lies to the District Court and not to the High Court. Office brought to my notice a copy of Punjab Gazette, July 17, 1914 is placed on under section 388 of Succession Act, 1925 by a Civil Judge' was susceptible to an appeal to the regardless of the limits of pecuniary jurisdiction, an order passed under the delegated authority District Judge and not directly to the High Court. Upon this view, appeal is returned to the appellants for its representation to the Court of competent jurisdiction. Order accordingly."

From the perusal of this judgment, it appears that through notification published in Punjab Gazzette on July 17, 1914, the Civil

Judge was invested with powers of District Judge. The provisions of the Act are crystal clear that an order passed under Section 372 of Succession Act, 1925 by an inferior Court, the appeal lies before the District Judge and in case an order passed under the aforementioned section by a District Judge, the appeal shall lie before the High Court. In this regard, I am fortified to seek guidance from the case titled "Umar Farooq Shah V. Mst. Shagufta Nasreen and others" (1997 CLC 1846), wherein the Court observed as under:

"It appears that under section 388 the Courts inferior to District Judge are vested with the powers to entertain applications for succession certificate in order to reduce the over burden work of the District Judge who is exercising power in the whole District in respect of many other matters. The option, is left to the party filing application for succession certificate to file the same either directly before the District Judge who may entertain the same in its original jurisdiction and if so the appeal would lie to the High Court under section 384 of the Act. In other cases the District Judge may refer the case to any Court inferior to it duly notified by the Provincial Government in official Gazette to entertain the said application for succession certificate. In this view of the matter and by interpreting the two sections of law an interpretation which create convenience to the parties and is more liberal is to be construed. I, therefore, hold that the proper forum for appeal is the Court of District Judge and not this Court when order is passed by an inferior Court. I refrain from making any observation on the merits of the case and will send this case to the District Judge, Abbottabad to hear the appeal on merits. The parties are directed to appear before District Judge, Abbottabad on 19-6-1997."

This Court in a case titled "Rukhsana Kausar and another V. Additional District and Sessions Judge, Khanewal and 11 others" (2000 CLC 585), explained the Section 388 as under:

"Section 388 of the Act provided that Provincial Government may by notification in the official Gazette authorize any Court inferior in grade to a District Judge with power to exercise the functions of a District Judge under Succession Act. If the Civil Court inferior to the Court of District Judge passes an order, granting a succession certificate, from such an order an appeal shall lie to the District Court by virtue of proviso to Section 388(2) and not to the High Court."

In a case titled "Mst. Anita Anam and others V. General Public and others" (2020 CLC 1053), the Court observed as under:

"The provisions of *ibid* Act, are crystal clear that an order passed under Section 372 of the Succession Act, 1925 by an inferior Court, the appeal lies before the District Judge and in case an order passed under the aforementioned section by a District Judge, the appeal shall lie before the High Court."

The principle laid down in the afore-referred judgments fully governs the controversy in hand. Once it is accepted that the order impugned before the learned Appellate Court had been passed by a Court exercising powers under Section 388 of the Succession Act, 1925, the appeal was competent before the District Judge irrespective of the value of the estate involved. The learned Appellate Court, therefore, fell in patent error in returning the appeal on the ground of lack of pecuniary jurisdiction. The case laws referred by learned counsel for the respondent i.e. "Muhammad Sohail Siddiqui and 2 others V. Mst. Parveena alias Munni" (2010 MLD 1433) is not relevant to the facts & circumstances of the case in hand.

16. For what has been discussed above, I am of the considered view that the impugned order dated 27.05.2025 suffers from a material illegality and jurisdictional error. The learned Appellate Court failed to appreciate that the forum of appeal in succession matters is regulated by the special provisions of the Succession Act, 1925 and not by the pecuniary limits prescribed for ordinary civil litigation.

17. As an inescapable corollary of above discussion, this Civil Revision is allowed. The impugned order dated 27.05.2025 is set aside and the learned Appellate Court is directed to restore the

appeal to its original number and proceed to decide the same on merits strictly in accordance with law. No order as to costs.

(AHMAD NADEEM ARSHAD)
JUDGE.

Approved for Reporting.

JUDGE.

*M. Arsalan**